

22LBCV01066 22LBCV01066

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-15

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1.

Facts

Plaintiff, Mary Wilson filed this action against Defendant, Rodger Wilson for damages arising out of a partnership agreement the parties signed during the course of their divorce proceedings. The operative complaint is the FAC, which was filed on 2/09/23. It includes causes of action for breach of fiduciary duty, elder abuse, breach of contract, conversion, unjust enrichment, accounting, constructive trust, and violation of Penal Code §496(c).

2.

Motion to Enforce Settlement

a. Settlement
Agreement

On 4/08/25, the parties entered into a written settlement agreement for the purpose of resolving their disputes in this action and in a companion action pending between them in Kansas. The settlement agreement is attached as Exhibit 2 to the moving papers.

b. §664.6

Plaintiff moves for an order enforcing the settlement per CCP §664.6. CCP §664.6(a) permits the Court to “enter judgment pursuant to the terms

of the settlement.” Plaintiff seeks an order “enforcing” the parties’ settlement agreement, but her proposed judgment is a combination of a judgment and an order.

Notably, the proposed judgment/order includes language stating, “The Court shall retain jurisdiction pursuant to Code of Civil Procedure section 664.6 to continue to enforce the Settlement Agreement...”

CCP §664.6 does not contemplate entering an order requiring the parties to engage in specified acts once the parties have settled their dispute. It contemplates only entering a judgment. It also does not contemplate ongoing jurisdiction to “enforce” a judgment once entered; enforcement of judgments is the parties’ responsibility.

c. Additional Problems

The Court could theoretically enter a judgment to enforce the parties’ settlement agreement. Plaintiff’s proposed judgment, to the extent it is a judgment, does not, however, seek to enforce the terms of the parties’ agreement. The proposed judgment asks for a judgment by partition of the parties’ Kansas properties and the parties’ Dawson property, located in California. The settlement agreement, however, does not include the word “partition” anywhere therein.

Nothing in CCP §664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. *J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 984.

The settlement agreement contemplates the sale of the properties, and provides explicit mechanisms for such sale of the properties, including methods to seek court orders if a party believes the other party is not proceeding properly. Plaintiff is not seeking any of the orders contemplated by way of the parties’ agreement, but instead is seeking to have the Court create a judgment and companion orders out of whole cloth. Plaintiff cites no authority permitting the Court to do so, and the Court knows of none. The motion is summarily denied due to its failure to seek available relief under §664.6.

This ruling is without prejudice to Plaintiff's right to seek any relief contemplated by the parties' settlement agreement and/or to seek any applicable legal relief with appropriate authority.

Plaintiff is ordered to give notice.